

HOUSE BILL NO. 486

INTRODUCED BY N. DURAM, S. NOVAK, M. CUFFE, D. LOGE, J. DARLING

A BILL FOR AN ACT ENTITLED: "AN ACT REVISING LAWS RELATED TO COMPENSATION FOR DEPUTY SHERIFFS; INCREASING THE PERCENTAGE OF THE SHERIFF'S SALARY THAT IS USED TO CALCULATE THE SALARY FOR DEPUTY SHERIFFS; AND AMENDING SECTION 7-4-2508, MCA."

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

Section 1. Section 7-4-2508, MCA, is amended to read:

"7-4-2508. Compensation of undersheriff and deputy sheriff -- definitions. (1) The sheriff shall fix the compensation of the undersheriff at 98% of the salary of that sheriff.

(2) (a) The sheriff shall fix the compensation of the deputy sheriff based ~~upon~~on a percentage of the salary of that sheriff according to the following schedule:

In counties with a population of:

Below 15,000	85% to 95% <u>97%</u>
15,000 to 29,999	76% to 95% <u>97%</u>
30,000 to 74,999	74% to 95% <u>97%</u>
75,000 and over	72% to 95% <u>97%</u>

(b) The sheriff shall adjust the compensation of the deputy sheriff within the range prescribed in subsection (2)(a) according to a rank structure in the office.

(3) For the purposes of this section, the following definitions apply:

(a) "Compensation" means the base rate of pay and does not mean longevity payments or payments for hours worked overtime.

(b) "Salary of that sheriff" means the total salary provided for in 7-4-2503(1), (2)(b), and (2)(c)."

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